



CHAPTER xxii.

An Act for incorporating and conferring powers on the Wellington (Somerset) Gas Company and other purposes. A.D. 1904.
—
[24th June 1904.]

WHEREAS certain persons under a deed of settlement dated the nineteenth day of April one thousand eight hundred and thirty-four formed themselves into a company under the name of the Wellington Gas and Coal Company (hereinafter referred to as "the existing company") for the purpose of supplying the town of Wellington in the county of Somerset and all public places roads streets lanes ways passages and buildings and also all private houses shops manufactories properties and buildings within the said town with inflammable air or gas and such company was duly registered on the eighth day of September one thousand eight hundred and ninety-eight pursuant to the Joint Stock Companies Acts under the name of the Wellington (Somerset) Gas Coke and Light Company Limited :

And whereas under the before-mentioned deed of settlement the capital of the existing company was fixed at two thousand pounds divided into one hundred shares of twenty pounds each but the capital has been from time to time increased until in the year one thousand eight hundred and ninety-eight it stood at ten thousand pounds divided into two hundred shares of fifty pounds each with forty-five pounds paid up in respect of each share :

And whereas previously to the year one thousand eight hundred and ninety-eight the existing company expended out of the profits of their undertaking various sums of money upon the general improvement and extension of their undertaking and in the year one thousand eight hundred and ninety-eight the nett assets of the existing company being of the value of fourteen thousand pounds and upwards the capital of the existing company

A.D. 1904. — was increased to fourteen thousand pounds by the creation of four hundred new shares of ten pounds each the fifty pounds shares being subdivided into five shares of ten pounds each and considered as fully paid-up and the four hundred new shares being distributed among the holders of fifty pounds shares in the proportion of two new shares in respect of each share of fifty pounds :

And whereas in addition to the sums of money above mentioned the existing company have out of revenue expended upon the improvement and extension of their undertaking and have provided and are now using as working capital other moneys representing undivided profits which sums together make an aggregate sum of three thousand seven hundred and three pounds :

And whereas the existing company have recently caused a structural valuation to be made of their works as they now exist and such valuation amounts to the sum of fifteen thousand five hundred and seventy-two pounds :

And whereas it is reasonable that shares or stock representing the amount of the capital moneys and the sums so expended on the undertaking as aforesaid should be created and should be distributed rateably among the present shareholders of the existing company in the manner and under the conditions in this Act prescribed and set forth :

And whereas the existing company have no mortgage debt :

And whereas the existing company purchased the pieces of land described in the Schedule to this Act and erected gasworks thereon and are now supplying gas in the parish and urban district of Wellington :

And whereas the demand for gas in the district supplied by the existing company has increased and is increasing and in order the better to meet such demand it is expedient that the works of the existing company should be improved and that additional capital should be provided for such improvement :

And whereas it is expedient that the existing company should be dissolved and re-incorporated with further powers :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Wellington (Somerset) Gas Act 1904. A.D. 1904.
Short title.

2. The Companies Clauses Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed money into capital and except Part IV. of the Companies Clauses Act 1863) the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement) the Gasworks Clauses Act 1847 (except sections 31 to 34) and the Gasworks Clauses Act 1871 (so far as they are applicable for the purposes and not inconsistent with the powers of this Act) are subject to the provisions of this Act incorporated with and form part of this Act: Incorporation of Acts.

Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building."

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

The expression "the Company" shall mean the Company incorporated by this Act.

The expressions "the works" "the gasworks" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

4. The limits of this Act (hereinafter called "the limits of supply") shall be the parish and urban district of Wellington in the county of Somerset. Limits of Act.

5. From and after the passing of this Act the existing company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes Re-incorporation of Company.

A.D. 1904. hereinafter mentioned and shall be incorporated by the name of
 "The Wellington (Somerset) Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act or of their undertaking.

General
 purposes of
 Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving enlarging extending and renewing the gasworks of the existing company and manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of supply and for converting or utilising and distributing materials used in or about the manufacture of gas and of residual products resulting from such manufacture and for dealing in selling and disposing of gas coke tar lime chemicals and residual and manufactured products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas or by the combination of any of the above-mentioned matters either with each other or with other substances and generally for carrying on the business usually carried on by a gas company.

Present
 property of
 existing
 company
 vested in
 Company
 incorporated
 by this Act.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the existing company or any person in trust for them or to which the existing company were in anywise entitled and all mains pipes plant plugs lamps irons retorts gauges meters gas stoves cookers gas fittings lamp-posts syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the passing of this Act were the property of the existing company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the existing company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the existing company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the existing company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

8. Subject to the provisions of this Act the deed of settlement constituting the existing company dated the nineteenth day of April one thousand eight hundred and thirty-four shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the existing company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said deed of settlement incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the existing company if this Act had not been passed.

A.D. 1904.
Deed of settlement of existing company to be void without prejudice to antecedent breaches thereof.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the existing company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said deed of settlement had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were [not incorporated and the said deed of settlement were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and the holders of shares or stock therein and the property of the Company shall to all intents and purposes represent the existing company and the members thereof as such and the property of the existing company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Nothing to affect previous rights and liabilities.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the existing company or any trustees or persons acting on behalf of the existing company or by to or with any other person to whose rights and liabilities they have

Contracts prior to Act to be binding.

A.D. 1904. — succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the existing company or the trustees or persons acting on behalf of the existing company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the existing company or any member thereof in relation to the affairs of the existing company or to which the existing company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the existing company or any member thereof if this Act had not been passed the Company and the holders of shares and stock therein being in reference to the matters aforesaid in all respects substituted for the existing company and its members respectively.

Trustees of
existing
company to
be indemnified.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the existing company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the existing company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy liabilities of
existing
company.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the existing company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the existing company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the existing

company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. A.D. 1904. —

15. All persons who immediately before the passing of this Act owed any money to the existing company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the existing company or for the payment of which the existing company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before passing of Act.

16. Notwithstanding the avoidance of the said deed of settlement all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under it for and with respect to any shares in the existing company shall remain in full force and continue and be available in all respects as if they had not been avoided. Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance. Books &c. continued evidence.

18. All officers and servants of the existing company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act. Officers to continue until removed.

19. The books kept by the existing company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until a register of shareholders or holders of stock shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders and of holders of stock required to be kept by the Companies Clauses Consolidation Act 1845. Present registers of members to be continued.

A.D. 1904.
Capital.

20. The capital of the Company shall be thirty-two thousand five hundred pounds divided as follows :—

(1) Capital stock to the amount of fourteen thousand pounds being the share capital of the existing company in this Act called "original stock A" :

(2) Capital stock to the amount of three thousand five hundred pounds being stock created by this Act in respect of moneys expended by the existing company out of revenue on extensions and improvement and working capital in this Act called "improvement stock B" :

The above amounts of capital shall be deemed to be fully paid up :

(3) Fifteen thousand pounds in this Act called "the additional capital" to be raised in manner hereinafter mentioned :

And the Company may convert into stock the whole or any part of the additional capital when fully paid up.

Vesting of
original
stock A and
improvement
stock B in
present
shareholders.

21.—(1) The original stock A shall be vested in the several persons and corporations who immediately before the passing of this Act were the registered members of the existing company ten pounds of stock being substituted for one share of ten pounds of the existing company.

(2) The improvement stock B shall be vested in the several persons and corporations who immediately before the passing of this Act were the registered members of the existing company in proportion to the amount of shares in the existing company held by them respectively.

(3) The stock so vested by this section shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as at the time of vesting affected the shares or share in respect to which the same is allotted and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition of or affecting such shares or share and every agreement deed or other instrument or testamentary disposition made before the passing of this Act and affecting shares in the existing company shall take effect with reference to the whole or a proportionate part as the case may be of the stock allotted in respect thereof.

(4) No person shall hold any fractional part of a pound of stock and in any case in which any person would but for this provision have become entitled to a fractional part of a pound of stock in respect of his shares in the existing company the Company

shall not be bound to register such fractional part of stock but may pay to such person such a sum in cash as shall be equal to the market value of such fractional part and the amount of stock vesting in such person shall thereupon be reduced accordingly and the directors may raise the money necessary to enable the Company to make such cash payment as aforesaid either by the sale of such fractional parts of stock or by the creation and issue of such an amount of additional capital by this Act authorised as may be requisite in that behalf.

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22. The Company shall call in and cancel the existing certificates of shares in the existing company and issue in lieu thereof certificates in the form and under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificate of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

Company shall call in and cancel existing share certificates and issue new certificates in lieu thereof.

23.—(1) Any transfer of stock may be in multiples of one pound so long as thereby no holding of any stockholder of the Company is less than ten pounds nominal value of stock and notice of the effect of this enactment shall be stated in or endorsed on all stock certificates.

Multiples of stock.

(2) Sections 18 19 and 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to capital stock and the interest thereon as if such stock and interest had been expressly mentioned therein.

24. The Company may from time to time raise additional capital not exceeding in the whole fifteen thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of

Power to Company to raise additional capital.

A.D. 1904. fifteen thousand pounds Provided also that the Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than ten thousand pounds.

Receipt in case of persons not sui juris.

25. If any money is payable to a holder of shares or stock or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Profits of Company limited.

26. Except as by this Act provided the profits of the Company to be divided among the stock holders and shareholders in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") that is to say on the original stock A the rate of ten pounds in respect of every one hundred pounds of such capital on the improvement (stock B the rate of five pounds in respect of every one hundred pounds of such capital and on the additional capital to be raised under the powers of this Act the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Dividends on different classes of stock or shares to be paid proportionately.

27. In case in any half year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

New shares or stock to be offered by auction or tender.

28. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act and forming part of the additional capital are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be

opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bidding or offer by tender of any such holder or holders of shares or stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of shares or stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

29. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase money of capital sold to be paid within three months.

30. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of the Wellington (Somerset) Urban District Council and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said district.

Notice to be given as to sale of shares or stock.

31. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Disposal of shares or stock not sold by auction or tender.

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Application
of premium
arising on
issue of
shares or
stock.

32. Any sum of money which shall arise from the issue of any such shares or stock portion of the additional capital by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that in any case where a power to raise money by borrowing or to create an insurance fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

If profits exceed amount limited excess may be invested and form an insurance fund.

33. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend on the ordinary capital at the authorised rates of dividend the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

Application
of excess of
profits over
authorised

34. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend at the

authorised rates of dividend on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

A.D. 1904.
rates of dividend.

35. Where in any year the dividends of the Company on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Power to create a reserve fund out of dividends in excess of standard rate of dividend and application thereof.

36. The Company may borrow on mortgage of their undertaking in respect of the original stock A and the improvement stock B any sum not exceeding in the whole five thousand eight hundred and thirty-three pounds.

Power to borrow in respect of original and improvement stock.

37. In addition to the money which the Company are authorised to borrow by the last preceding section they may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that such shares or stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate

Power to borrow in respect of additional capital.

A.D. 1904. that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Appointment
of receiver.

38. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

Debenture
stock.

39. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts.

40. All money to be raised on mortgage by the Company under this Act and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Application
of money.

41. All moneys raised under this Act whether by shares or stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

First ordinary
meeting.

42. The first ordinary meeting of the Company shall be held within nine months next after the passing of this Act and the

future ordinary meetings of the Company shall be held in the month of February in every year or at such other time as shall be appointed for that purpose by an order of a general meeting. A.D. 1904.
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43. The quorum of all general meetings whether ordinary or extraordinary shall be five holders of shares or stock present in person or by proxy holding not less in the aggregate than one thousand pounds in the ordinary capital of the Company. Quorum for meetings of Company.

44. The number of directors shall be seven but the Company may vary the number provided that the number be not at any time more than nine or less than five. Number of directors.

45. The qualification of a director shall be the possession in his own right of not less than ten shares or not less than one hundred pounds of stock (not being debenture stock). Qualification of directors.

46. The quorum of a meeting of directors shall be three. Quorum.

47. Joseph Hoyland Fox Jonathan Cutler Thomas Fox John Reynolds Miller Robert Knight William Phillips Bubear and Thomas Nicholson Sully shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the holders of shares or stock present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the holders of shares or stock present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act. First directors.
Election of directors.

48. At all general meetings of the Company every holder of ordinary shares or stock shall have one vote for every ten pounds (nominal value) of the capital of the Company up to one hundred pounds and an additional vote for every fifty pounds (nominal value) of the capital of the Company beyond the first one hundred pounds held by him. Scale of voting.

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Auditors.

49. The auditors need not hold shares or stock in the Company.

Directors
not to be
disqualified
&c.

50. No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract or the remuneration attached to any such office or place of trust or profit.

Interim
dividends.

51. The directors may in any year without calling a meeting of holders of shares or stock for the purpose declare an interim half-yearly dividend out of the profits of the Company Provided that the amount of any half-yearly dividend so declared shall not exceed in any one half year one half of the amount of the standard rate of dividend.

Closing of
transfer
books pre-
vious to
declaring
interim divi-
dend.

52. It shall be lawful for the directors to close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the principal office of the Company is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the party claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Powers as to
construction
and mainte-
nance of gas-
works &c.

53. Subject to the provisions of this Act the Company may upon the lands described in the Schedule to this Act maintain alter improve enlarge extend and renew or discontinue the gasworks of the existing company and may upon such lands erect lay down provide and from time to time maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of supply and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas or the materials used therein.

54. The Company may for the purposes of their undertaking purchase take and hold by agreement (but not otherwise) in addition to the lands described in the Schedule to this Act any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedule to this Act.

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Power to purchase lands by agreement. Gas not to be manufactured except on lands scheduled.

55.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

Power to supply gas fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

56. The standard price to be charged by the Company for gas supplied by them shall be four shillings and threepence per thousand cubic feet:

Dividend dependent on price charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows:—

In respect of any half year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been

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increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend by one shilling and threepence on every one hundred pounds of such capital with a five per centum standard rate of dividend and by one shilling and ninepence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

And in respect of any half year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend by one shilling and threepence on every one hundred pounds of such capital with a five per centum standard rate of dividend and by one shilling and ninepence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Discounts.

57. The Company may if they think fit allow discounts or rebates to consumers of gas not exceeding ten per centum in consideration of prompt payment of gas rents and in addition thereto not exceeding fifteen per centum to large consumers upon such scale and subject to such conditions and regulations as may be prescribed by special contract in writing between the Company and any of such consumers Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Pressure of gas.

58. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six tenths of an inch and from sunset to midnight not less than eight tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road

passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted. A.D. 1904.

59. The prescribed number of candles shall not be less than fourteen. Quality of gas.

60. Within twelve months from the passing of this Act a testing place shall be provided at the works of the Company. Testing place.

61. The burner for testing gas shall be a Sugg's London sixteen-candle Argand burner number one and in making the tests shall be so used that the gas shall be burnt at such a rate as shall give a light equal to sixteen candles. Burner.

62. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to specification of internal fittings and construction and placing of pipes &c. between mains and consumer's premises.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating in the urban district of Wellington and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until the expiration of twenty-four hours from the service of

A.D. 1904.

such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Company to pay interest on money deposited as security.

63. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Anti-fluctuators for gas engines.

64. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Gas consumers to give notice to Company before removing.

65. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to

the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed on every demand note for gas rent. A.D. 1904.

66. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pay the same. Power to refuse to supply persons in debt for other property.

67. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Company. Notice of discontinuance.

68. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. Period of error in defective meters.

69. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the Court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. No penalty in case of unavoidable cause.

70. The Company may contract with any local authority company or person beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms Supply in bulk outside limits.

A.D. 1904. — and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Dwelling-houses for workmen.

71. The Company may purchase or take on lease dwelling-houses for persons in their employ and may maintain and erect upon the lands for the time being belonging to them cottages or dwelling-houses suitable for such persons.

Power to hold licences under letters patent.

72. The Company may take hold and use within the limits of this Act patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture conversion utilisation or distribution of gas and of such materials and residual products as aforesaid.

Power to lay pipes in streets not dedicated to public use.

73. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to the public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to apply for a Provisional Order to supply electrical energy.

74. The Company if they think fit may under the provisions of the Electric Lighting Acts 1882 and 1888 make application for a Provisional Order or licence to supply electrical energy for public and private purposes and may apply their funds for the purpose of such application.

Recovery of demands under one hundred pounds.

75. Proceedings for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

For protection of Great Western Railway Company.

76. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall apply:—

(A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or in any way affecting the

railways lands and property for the time being belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference as may be determined by arbitration in manner hereinafter provided Provided always that if such principal engineer shall not approve or disapprove any plans or proposals so submitted to him within twenty-eight days after the same are delivered or shall refuse or neglect to superintend the work the Company may proceed with the same without the approval of the plans as aforesaid or without the superintendence of the said engineer :

- (B) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company but so nevertheless that any mains or pipes so laid by the Great Western Company shall be laid under the superintendence and to the reasonable satisfaction of the Company's engineer :
- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :

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- (D) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (E) The Company shall acquire only such an easement across over or under any of the railways works or property of the Great Western Company as may be necessary for constructing or maintaining any of the works of the Company and shall pay to the Great Western Company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (F) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of

such diversion supporting carrying or dealing with such works Provided that such works shall be done subject to the reasonable satisfaction of the engineer of the Company and without unduly interfering with the supply of gas by the Company :

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- (G) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

77.—(1) If at any time within twenty years from the passing of this Act the urban district council of Wellington in the county of Somerset (hereinafter called "the council") shall apply to Parliament for power to purchase the undertaking of the Company the Company shall not oppose such application except in so far as may be necessary in order to secure the insertion in any bill introduced into Parliament to authorise such purchase of clauses to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit and if such powers of purchase be granted the Company shall within twelve months after the passing of the Act conferring such powers sell and transfer and the council shall purchase and acquire the undertaking of the Company subject to all the existing mortgages obligations and liabilities of the Company in respect of or affecting their undertaking.

Provisions as to purchase of undertaking by Wellington Urban District Council.

(2) Any such sale and purchase shall be for such price and consideration and on such terms and conditions as may be agreed upon between the Company and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking of the Company.

(3) In addition to the sum to be paid by the council to the Company under the foregoing provisions of this section the council shall pay to the Company all the costs and expenses of and incident

A.D. 1904. — to the arbitration and the transfer of the undertaking of the Company and the winding up of the Company provided that in the event of the council obtaining powers under subsection (1) of this section to purchase the undertaking of the Company and purchasing the same within ten years from the passing of this Act they shall pay to the Company all the costs charges and expenses incurred by the Company preliminary to and of and incident to the preparing applying for and obtaining this Act or otherwise in relation thereto.

(4) The council shall also pay compensation to any officers and servants in the regular employment of the Company who shall not be retained by the council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company at the passing of the Act authorising the purchase of the undertaking of the Company in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the council the amount of such compensation in default of agreement to be determined by arbitration as aforesaid.

(5) For the purposes of this section the expression "the undertaking of the Company" includes all the gasworks engines main pipes and machinery lands and buildings plant fixed and movable and other property and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of the transfer of the undertaking of the Company to the council save and except—

(1) The cash balances (other than consumers' deposits) in the Company's hands or in those of their bankers or agents on the day of the transfer securities for money and all sums standing to the credit of their reserve fund and all undivided profits and all surplus stock-in-trade and stores not in use which may be purchased by the council at a valuation in the usual way;

(2) All the rents and profits of and all book and other debts due to the Company and all rates accrued due on the date of the transfer and the books and papers relating exclusively to the shareholders in and the constitution of the Company.

Copy of Act
to be regis-
tered.

78. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three

months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily. A.D. 1904.
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There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

79. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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The SCHEDULE referred to in the foregoing Act.

Lands on which the Company may maintain alter improve enlarge extend renew or discontinue gasworks:—

- (A) A piece of land containing by admeasurement 3 roods or thereabouts situate in the parish and urban district of Wellington in the county of Somerset bounded on or towards the south partly by property belonging or reputed to belong to Mrs. Jane Porter and partly by the land (B) hereinafter described on or towards the north by property belonging or reputed to belong to Messieurs Ford Brothers and Company on or towards the east by property belonging or reputed to belong to Mrs. Fanny Follett and on or towards the west by a roadway known as Champford Lane otherwise Gas Street:
- (B) A piece of land containing by admeasurement 20 poles or thereabouts situate in the parish and urban district of Wellington in the county of Somerset bounded on or towards the south by Bulford Lane on or towards the north by the land (A) hereinbefore described on or towards the east by property belonging or reputed to belong to Henry Martin and on or towards the west partly by property belonging or reputed to belong to Frank Bickham and partly by property belonging or reputed to belong to Mrs. Jane Porter.

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